

CASE #	CASE NAME	HEARING NAME
		TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT MARY ELIZABETH LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR REQUEST FOR ADMISSIONS, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSE TO REQUEST FOR ADMISSIONS, SET ONE

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CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO FORM INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE VS LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling: Plaintiff's Motions to Compel Responses to Requests for Production (Set One), Responses to Form Interrogatories (Set One), Responses to Special Interrogatories (Set One), Responses to Special Interrogatories (Set One), Responses to Special Interrogatories (Set One), and Responses to Form Interrogatories (Set One) are granted.

As to Plaintiff's Motion to Compel Responses to Requests for Admissions (Set One), it is denied.

As to Sanctions, it is awarded to Plaintiff AGAINST Defendants, JEFFREY LEMASTERS TAHIR and MARY ELIZABETH LEMASTERS TAHIR, in the reasonable reduced amount of \$900.00 (3 hours at \$300 per hour).

CCP §2030.290(b) provides that if a party fails to respond to an interrogatory request "[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (CCP §2030.290.)

The declaration of City's counsel reflects that responses to the discovery were not served. Further, the meet and confer letter attached to the declaration reflects that after the alleged responses were mailed, City was inquiring when responses would be provided, which validates the City's position that responses were never received. The opposition to the motion fails to provide any evidence to the contrary. Accordingly, the court should grant the motion to compel responses to Special Interrogatories (Set One) numbers 1 – 35.

There is no provision in the discovery code for compelling a party to respond to RFAs, rather, the code provides that if the party to whom the requests are directed fails to timely respond, the "requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction...." (CCP §2033.280(b).) Nor does Defendant cite any specific provision that gives this court authority to compel response to RFAs. Rather, Plaintiff's only recourse was a motion to deem admissions admitted, pursuant to CCP §2033.280, which is cited by Plaintiff in its motion.

Sanctions:

The motion seeks sanctions of \$1,500 pursuant to CCP section 2023.030 and 2030.300. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.... If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (italics added.) (CCP §2023.030(a).) CCP §2023.010 sets forth conduct that constitutes misuses of the discovery process, which includes "[f]ailing to respond or to submit to an authorized method of discovery." (CCP §2023.010(d).)

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or

opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2031.300.) Here, the court has not been provided a basis upon which to find that Defendant acted with substantial justification or that other circumstances make the imposition of a sanction unjust.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s Special Motion to Strike is granted as to the 8th through 11th causes of action in full; as to the portions of the 13th through 17th causes of action and claims for damages, it is granted.

Defendant’s request for attorney fees at the reasonably reduced rate of \$2,400.00 is granted, payable to defense counsel within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Moving Party’s Burden

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) A defendant is required to make a prima facie showing that plaintiff’s suit arises from any act of defendant in furtherance of his right to petition or his right of free speech under the federal or state constitution in connection with an issue of public interest. (C.C.P. § 425.16(e); *Equilon Enterprises v. Consumer Cause* (2002) 29 Cal.4th 53, 67.) The act that forms the basis for the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.)

A defendant may meet this burden by showing that the act that forms the basis for the plaintiff’s suit was: (1) any written or oral statement made before a legislative, executive or judicial proceeding; (2) a statement or writing made in connection with an issue under consideration in such a proceeding or “any other official proceeding authorized by law;” (3) any written or oral statement made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with an issue of public interest. (C.C.P. § 425.16(e).) A defendant must